



BEFORE

In March 1862, the Confederacy introduced compulsory military service for all men between the ages of 18 and 35. It was a response to waning numbers of volunteers and the impending disintegration of rebel armies as the 1861 enlistment terms expired.

CONSCRIPTION AND RIOTS

In September 1862, the Southern draft was further expanded to include **men up to age 45**, and subsequent amendments **allowed even 16-year-olds to be drafted**. The measure was hated by most Confederate citizens and viewed as an **unnecessary intrusion by the national government** on the rights of both states and individuals.

The Union government also passed a draft law in late 1862—the so-called “**militia draft**.” This obliged states to formally register **all white men between 18 and 45** as liable for military service in state regiments and for up to nine months’ service in the Federal armed forces. The law was **wildly unpopular and incited rioting and resistance** across the North, prompting President Abraham Lincoln to temporarily suspend habeas corpus in certain areas of the Union.

Conscription, also known as the draft, was a key factor in making the Civil War a people’s war, but this did not make it any the less resented on either side. In the South, growing anger at the draft was compounded by the hated “Twenty-Negro Law,” which exempted enslavers and overseers of 20 or more people. The right of large enslavers to opt out of military service infuriated many poorer whites, who started to question their sacrifices on behalf of rich men and their property.

President Jefferson Davis, General Robert E. Lee, and others in the Southern high command believed not only that the draft was an unfortunate necessity, but also that the exemption clause was vital to maintain the Confederate economy. Southern women, often driven to the poverty line by the absence of their men, disagreed and rioted in several towns and cities throughout 1862 and 1863. The most famous of these disturbances was the Richmond Bread Riot of March 1863, during which Jefferson Davis somewhat ineffectually attempted to mollify the mob by throwing money to it from his coat pockets. Only the arrival of troops stopped the mayhem.

Northern draft